

MyHOAAppeal - Educational worksheet

Seasonal and Weather-Related HOA Cure Delays

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about weather logs and reasonable extension requests. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of weather logs and reasonable extension requests.
- * Make the decision point explicit: Your appeal should answer whether to request a weather-based extension with exhibits, not a cure.
- * Compare options deliberately: Know whether you are closer to Documented storm delay, Mild weather, or Vendor backlog only.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to weather logs and reasonable extension requests.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about weather logs and reasonable extension requests. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on weather logs and reasonable extension requests.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether to request a weather-based extension.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around weather logs and reasonable extension requests.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether to request a weather-based extension, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to weather logs and reasonable extension requests
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether to request a weather-based extension
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether documented storm delay or mild weather better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing weather logs and reasonable extension requests arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether to request a weather-based extension.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on weather logs and reasonable extension requests; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around weather logs and reasonable extension requests.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on weather logs and reasonable extension requests. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering weather logs and reasonable extension requests?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run

this tree for weather logs and reasonable extension requests. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about weather logs and reasonable extension requests.

Q (quality): Does your packet clearly address whether to request a weather-based extension?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue weather logs and reasonable extension requests. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on weather logs and reasonable extension requests, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve weather logs and reasonable extension requests arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Documented storm delay | Mild weather | Vendor backlog only

Typical signal

[Documented storm delay] Clear written basis for documented storm delay

[Mild weather] Partial or contested basis for mild weather

[Vendor backlog only] High risk if you only have vendor backlog only

Owner priority

[Documented storm delay] Preserve documented storm delay with indexed proof

[Mild weather] Convert mild weather into a documented record

[Vendor backlog only] Do not rely on vendor backlog only alone

Board / manager reaction

[Documented storm delay] Harder to dismiss when exhibits are complete

[Mild weather] May stall or ask for more information

[Vendor backlog only] Often treated as insufficient without follow-up writing

Next educational move

[Documented storm delay] Advance the formal path for weather logs and reasonable extension requests

[Mild weather] Send a clarifying letter addressing whether to request a weather-based extension

[Vendor backlog only] Collect missing documents before arguing substance

Escalation risk if ignored

[Documented storm delay] Lower if you stay on deadline

[Mild weather] Medium - ambiguity can harden into denial

[Vendor backlog only] Higher - vendor backlog only gaps feed collections narratives

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